

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 24, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Mr. Laybourn, and pursuant to support received by Mr. Segrave and Mr. White, item #15 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Segrave, item #18(a) was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. White and Dr. Aldrich, item #20(b) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 10, 2024. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Defining the Terms and Conditions of employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2024-2025, repealing and replacing Ordinance Nos. 4520 and 4539. Reporting for Finance Committee, Dr. Aldrich moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4576)

ORDINANCE –3rd READING – Amending Sections 1.4.3 Defined Terms and 2.2.6 Temporary Use Approval of the Unified Development Code, adding a minimum of fourteen days. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4577)

ORDINANCE –3rd READING – Amending Section 1.4.4.c Service Uses, Table 5-1 Zoning District Uses, Section 5.7.4 Child Care Uses, and Table 6-2 Required Parking of the Unified Development Code, changing Child Care Requirements. Mr. Laybourn declared a conflict of interest and vacated council chambers. Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present in council chambers with the exception of Dr. Aldrich and Dr. Rinne voting “no”. Comments were

made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. Segrave. (#4578)

ORDINANCE –3rd READING – Creating Section 10.24.190, Critical Traffic Control Areas; Creation and Administration; Enhanced Penalties, of the Municipal Code of the City of Cheyenne, Wyoming, authorizing the designation of Critical Traffic Control Areas and authorizing enhanced penalties as specified. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Kevin & Sheryl Steele. Comments were made by the following members of the governing body: Mr. Cook and Mr. Segrave. (#4579)

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business to CB Community Business for land located northeast of the intersection of Cheyenne Street and Ridge Road. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending Section 10.16.150, Parking Violation Hearings and Appeal Procedures, of the Municipal Code of the City of Cheyenne, Wyoming, modifying the procedures governing the Administrative Review of Parking Citations, making conforming amendments and repealing an obsolete provision – referred to Public Services Committee. (Sponsors – Mr. Johnson and Mr. White)

ORDINANCE –1st READING – Creating Section 10.60.015, Paid On-Street Parking Districts; Establishment, Administration, of the Municipal Code of the City of Cheyenne, Wyoming, establishing the Paid On-Street Parking Districts Program and making conforming amendments as specified – referred to Public Services Committee. (Sponsors – Mr. Johnson and Mr. White)

RESOLUTION – Approving the Jolly Rogers Urban Renewal Plan and the Jolly Rogers Urban Renewal Project pursuant to Wyoming Statute Section 15-9-110. Mr. Roybal moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#6413)

[CA] RESOLUTION – Authorizing the Mayor to execute all necessary documents related to the transfer of a specified portion of the property located at 2014 Dell Range Boulevard. Motion (per Consent Agenda) carried. (#6414)

RESOLUTION – Expressing the appreciation of the Governing Body for the work of Director Nemecek, Director Sanchez, and their respective departments, on correcting deficiencies and improving and maintaining certain exterior components of the Municipal Building. Mr. Roybal moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Roybal and Mr. Segrave. (#6415)

[CA] RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of construction for a Greenway path for pedestrians and bicycles from the Sun Valley Open Space into Kiwanis Community Park – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the application for and acceptance of federal assistance from the Federal Aviation Administration under the Bipartisan Infrastructure Law to assist in the rehabilitation of the air traffic control tower – referred to Finance Committee. (Sponsor – Dr. Aldrich)

Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS) for the period of July 1, 2024 to June 30, 2025 (General Fund). Dr. Aldrich moved to approve in an amount not to exceed \$100,000.00, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook and Mr. Laybourn. (#7995)

[CA] Grant of Utility Easement between the City of Cheyenne and Cheyenne Light, Fuel and Power Company d/b/a Black Hills Energy located on a portion of Lot 8, Block 1, Centennial Heritage 2nd Filing, City owned property – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of City-owned land and buildings for parking, camping, and other activities during the 2024 Cheyenne Frontier Days Celebration (Revenue to the City) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7538 between the City of Cheyenne and Top-Flight Maintenance Inc. for Janitorial Services for the City of Cheyenne Municipal Building (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$49,905.00). (#7538)

[CA] Contract Modification #2 to Contract #7539 between the City of Cheyenne and Top-Flight Maintenance Inc. for Janitorial Services for the City of Cheyenne Municipal Court (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$15,203.00). (#7539)

[CA] Contract Modification #3 to Contract #7540 between the City of Cheyenne and Top-Flight Maintenance Inc. for Janitorial Services for the City of Cheyenne, Cheyenne Public Safety Center (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$65,100.00). (#7540)

[CA] Contract Modification #2 to Contract #7541 between the City of Cheyenne and Top-Flight Maintenance Inc. for Janitorial Services for the City of Cheyenne, Youth Alternatives & Special Friends Buildings (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$15,974.00). (#7541)

[CA] Consideration of Bid #S-18-24 for an Agreement between the City of Cheyenne and Better Line Roofing for the Cheyenne Fire Station 1 Roof Replacement Project (General Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$339,000.00). (#7996)

Consideration of Bid #S-26-24 for an Agreement between the City of Cheyenne and STC Construction Co., Inc for the VA Cemetery Road Project (General Fund Reserves). Dr. Aldrich moved to accept the bid in an amount not to exceed \$329,161.57, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Larry Poch. Comments were made by the following members of the governing body: Mayor Collins, Mr. Cook, Mr. Roybal and Mr. Segrave. (#7997)

[CA] Consideration of Bid #S-25-24 for an Agreement between the City of Cheyenne and Wescom, Inc. for the Norris Viaduct Lighting Modifications & I-180 Pedestrian Bridge Lighting Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

Appointment of Lorrell Walter and John Karajanis to the Downtown Development Authority Board and Rebecca Ogletree to the Community Action of Laramie County Board. Dr. Aldrich moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointments).

Reappointment of Rob Graham to the Urban Renewal Authority Board; Trey Rinne and Kevin Marquardt to the Cheyenne/Laramie County Economic Development Joint Powers Board; John Brodie, Kimberly Skoutary-Johnson and Jay Sullivan to the Laramie County Juvenile Services Joint Powers Board; Stephanie Reece to the Visit Cheyenne Board and Dave Teubner to the Downtown Development Authority Board. Dr. Rinne declared conflict of interest and vacated council chambers. Dr. Aldrich moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present in council chambers with the exception of Mayor Collins who did not vote (Mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

The following members of the governing body made comments under other business: Dr. Aldrich, Mayor Collins, Mr. Cook and Mr. Johnson.

Mr. Esquibel moved to meet in executive session Pursuant to Wyoming Statutes §16-4-405(a)(x), seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Amber Ash, Mayor’s Chief of Staff; Stefanie Boster, City Attorney; Robin Lockman, City Treasurer, John Kopper, Chief, Cheyenne Fire Rescue and Kris Jones, City Clerk.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:15 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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